

Calendar Line 6

Case Name: *Abhinav Bezgam et al vs 18771 Homestead Road, LLC et al*

Case Number: 22CV406777

Defendant Tashjian brings a renewed motion to stay these civil proceedings.

Plaintiffs' evidentiary objections are sustained. The Court finds Plaintiffs' requests for judicial notice unnecessary to the resolution of this renewed motion.

To bring a renewed motion after a motion has been denied in California, a party must comply with the requirements of Cal Code Civ Proc 1008. Specifically, the party must demonstrate "new or different facts, circumstances, or law" that justify the renewed motion. "Tashjian files this Renewed Motion based on the Criminal Incident Report, which was not considered by this court in the Initial Motion." (Motion, p. 6.) This report is the only "new fact" upon which Tashjian brings this renewed motion.

Tashjian does not provide the Court with a copy of the "Criminal Incident Report" and relies solely upon counsel's representations regarding a "synopsis" contained within that document. (Nichani Decl., ¶ 6.) In addition to this being incompetent evidence, "case law interpreting section 1008 has specifically held that a moving party must give a satisfactory explanation for the previous failure to present the allegedly new or different evidence or legal authority offered in the second application." (*Kerns v. CSE Ins. Group* (2003) 106 Cal.App.4th 368, 383, citing *Baldwin v. Home Savings of America* (1997) 59 Cal.App.4th 1192, 1194-1201; *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 688-691.) Tashjian offers no explanation why he did not or could not have offered this report in his initial motion. "Courts have construed section 1008 to require a party filing an application for reconsideration or a renewed application to show diligence with a satisfactory explanation for not having presented the new or different information earlier." (*Gee v. Greyhound Lines, Inc.* (2016) 6 Cal.App.5th 477, 486, quoting *Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 839.)

The Renewed Motion is DENIED.

Plaintiffs to prepare the final order within 10 days of the date of the hearing.

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